

HEADNOTE

“In appeal proceedings, Chapter 2 – Service (Rules 270 – 279) of the Rules of Procedure (RoP) applies mutatis mutandis. Consequently, if during the proceedings at the Court of First Instance, Rule 271.1 RoP applied (in short: an electronic address for service was provided by the defendant or his representative) and/or a representative of the respondent accepted service on behalf of the respondent, then pursuant to R.271.2 RoP further service – not only in the proceedings at first instance, but also in appeal proceedings - shall be effected within the closed electronic system of the UPC Case Management System (CMS).”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 3 611 989

Method and apparatus for transmitting
wireless local area network information

KEYWORDS

Service of the Statement of appeal and gro...

Rule 271 Service of the Statement of claim

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to a method and apparatus for transmitting wireless local area network information. According to the headnotes of the decision, when a defendant or their representative has provided an electronic address for service during first instance proceedings, or when a representative has accepted service on behalf of the respondent, the procedural rules for appeal proceedings require that all further service must take place exclusively through the UPC's closed electronic case management system rather than through other channels.